

File No.: EXP202305584

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 13, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that they are a neighbor of the respondent and that the latter has installed a camera in a private garden of the Community where their respective homes are located, clearly oriented towards the façade and windows of the complainant's home, without authorization for doing so.

Along with the notification, images showing the location of the camera are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received by the responsible party on May 12, 2023, as stated in the acknowledgment of receipt in the file.

On May 19, 2023, a response was received indicating that:

They only have one camera purchased online (a copy of the purchase invoice is provided) that is activated by movement and has night vision. It is a camera intended to preserve the safety of the respondent and their family, preventing thefts and intrusions into their home. The camera is installed on their property and is directed at and capturing their patio and the door and windows of their house. They provide photographs of the device located in the hedge of cypress trees that limits the respondent's property. They also provide an image of the camera's field of vision as it appears on the mobile phone.

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THIRD: On July 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On November 17, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established by the LPACAP, was received on December 27, 2023, as stated in the acknowledgment of receipt in the file.

SIXTH: On January 2, 2024, a written statement of allegations from the respondent was received, in which, in summary, the following considerations are made:

- That the camera only focuses exclusively on the doors and windows of their property and only focuses up to the height of a wall of their property.
- They claim to have reoriented the camera so that the viewing of the images does not capture private areas such as balconies and windows that are not their property.

- They attach photographs of the viewing images captured by the personal use camera.
In view of all the actions taken by the Spanish Agency for Data Protection in this proceeding, the following facts are considered proven,

PROVEN FACTS

FIRST: The respondent had a camera installed in a private garden of the Community, clearly oriented towards the façade and windows of the complainant's home, without authorization for doing so.

SECOND: The respondent has reoriented the camera so that the viewing of the images does not capture private areas such as balconies and windows that are not their property. Photographs are provided that confirm that the camera does not record private areas that are not their property.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each authority by Article 58.2 of the GDPR,

3/8

control and according to the provisions of articles 47, 48.1, and 64 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to allegations

In response to the allegations presented by the respondent, the following should be noted:

After examining the allegations of the respondent, this Spanish Agency for Data Protection considers that, currently, and taking into account the photographs provided by the respondent, the security camera only focuses on the doors and windows of their property and that the height at which the camera is located does not record the façade and windows of the claimant's home.

For all the above reasons, it is considered that the proposed measure in the initiation agreement of this procedure is being complied with.

However, it should not be understood that this was the case at the time of the filing of the complaint or the initiation of this warning procedure, which is why it is considered that there has been a breach of the provisions of article 5.1.c) of the GDPR.

III

The image is a personal data

The physical image of a person, according to article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Data protection regulations

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such

as capturing images through a video surveillance system, must provide the interested parties with the information indicated in articles 13 and 14 of the GDPR.

In order for the information duty provided for in article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a website, and must refer to the remaining elements of article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. In the event that the monitored space has several entrances, the distinguishing mark of the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in article 5 of the GDPR. We will highlight the principle of data minimization contained in article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of the data must be maintained.

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5/8

Data must be produced both at the time of data collection and in the subsequent processing carried out on it.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted. The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum necessary portion to preserve the safety of people and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras cannot capture images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

Analyzing the evidence available in the present file, the respondent indicates that they have a motion-activated camera with night vision, whose purpose is to preserve the safety of the respondent and their family to prevent thefts and intrusions into their home. The camera is installed on their property and is directed at and capturing their patio, door, and windows of their house.

However, in an image provided by the complainant as seen on the mobile device, it is noted that in the upper right corner, above the boundary hedge of the respondent's patio, some windows of other neighbors are included in the camera's field of view, which means the processing ceases to be domestic.

Therefore, the capture would not be proportional and in accordance with the aforementioned regulations, constituting a breach of Article 5.1.c) for violating the principle of data minimization, since the monitors must capture images that are limited to the interior space of their patio and the portion of the public road strictly necessary to capture the entrance.

V

Classification and qualification of the infringement

In accordance with the proven facts available at this time, it is considered that the respondent has committed an infringement of the principle of data minimization.

The known facts constitute an infringement attributable to the respondent, as provided in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed”; classified under Article 83.5, section a) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states that:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.a) of the LOPDGDD, which qualifies the following conduct as very serious: “a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

VI

Proposal for warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third section that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of the Regulation.

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7/8

(UE) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the

specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will lapse, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

VII

Conclusion

It is considered that the facts presented and in accordance with the evidence submitted, the proposed measure in the initiation agreement of this procedure has been fulfilled to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, without prejudice to understanding that there was a prior violation of said regulations. Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection, RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for the violation of article 5.1.c) of the GDPR, classified in article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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